



कर्मचारी भविष्य निधि संगठन

(श्रम मंत्रालय, भारत सरकार)

Employees' Provident Fund Organisation

(Ministry of Labour, Govt. Of India)

मुख्य कार्यालय/ Head Office

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11 2 सितम्बर 2008
SEP

To

All ACCs (Zones),
All RPFCs in charge of the Regions,
All OICs of SROs.

Subject: Filing of Special Leave Petitions before the Hon'ble Supreme Court of India.

Sir,

As you must be aware, filing of appeals before the Hon'ble Supreme Court of India has to be undertaken in a time bound manner. In order to ensure that the appeals don't become time barred, it is essential that all the relevant documents are available with the Legal Cell in time.

2. The following documents are absolutely essential for filing an appeal before the Hon'ble Supreme Court and as such any proposal for filing of an SLP must be accompanied with them -

- (i) Copy of the writ petition filed before the Hon'ble High Court (Single Bench/Division Bench) or NCDRC.
- (ii) Original certified copy of the order of the Hon'ble High Court or NCDRC against which SLP is proposed to be filed.
- (iii) Copy of the Single Bench order of Hon'ble High Court.
- (iv) Original certified copy of the Division Bench order of Hon'ble High Court or the order of Hon'ble High Court against which SLP is proposed to be filed and the original certified copy of NCDRC order, as the case may be.

- (v) Brief history of the case.
- (vi) English translated copies of all the documents originally in Hindi.
- (vii) Draft application for condonation of delay wherever applicable.
- (viii) Draft SLP duly enclosing legible copies of proposed annexures.
- (ix) Copy of legal opinion of the advocate specifically mentioning the substantial question of law of general importance to be decided by the Hon'ble Supreme Court.

3. For defending the SLPs filed by opposite parties, the documents mentioned in (i) to (vi) above and a draft counter reply to the SLP duly enclosing the legible copy of proposed annexures shall be required.

4. RPFCs must ensure

- that proposals for SLPs are sent well in time so that they do not get dismissed on grounds of delay; and
- that all the essential documents mentioned above are accompanied with the SLP proposal.

Yours faithfully,



(S.K. Singh)
Regional PF Commissioner (Legal)